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SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION

Mumbai, the 13th August, 2018

SECURITIES AND EXCHANGE BOARD OF INDIA
(EMPLOYEES' SERVICE) (THIRD AMENDMENT) REGULATIONS, 2018

No. SEBI/LAD-NRO/GN/2018/29. - In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to further amend the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, namely, –

1. These regulations may be called the Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2018.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, -
 - (A) in regulation 6, in sub-regulation (4), -
 - a. in clause (c), the words “a written test and/or group discussion” shall be substituted with the words “written tests”;
 - b. in clause (d), in the *proviso* thereto, the words “that in the case of appointment to the post of Executive Director, the Selection Committee shall consist of Chairman and two other members of the Board, constituted by the Chairman and such” may be omitted.

(B) in regulation 10, -

a. in sub-regulation (1), -

i. words “or promoted to one grade/scale to another” shall be omitted;

ii. the word “one” shall be substituted with the word “two”.

b. after the existing sub-regulation (1), the following new sub-regulation shall be inserted, namely, -

“(1A) An employee promoted to one grade/scale to another shall be on probation for a period of one year.”

(C) in regulation 36, after the existing sub-regulation (5), the following new sub-regulation shall be inserted, namely, -

“(6) Subject to the exigencies of work and approval by the competent authority, differently abled employees, as defined in the Rights of Persons with Disabilities Act, 2016, may be granted, in a calendar year, a maximum of ten days of special casual leave for participating in Conference, Seminars, Trainings or Workshops related to disability and development related programs and a maximum of four days of special casual leave for specific requirements relating to the disability of the employee:

Provided that the grant of special casual leave under this sub-regulation shall be subject to such terms and conditions as may be decided by the competent authority from time to time.”

(D) in regulation 55, -

a. in sub-regulation (1), the words “two years” shall be substituted with the words “one year” .

b. in sub-regulation (3), -

- i. the words “two years” shall be substituted with the words “one year” .
- ii. before the existing proviso, the following new proviso shall be inserted, namely, -

“Provided that the employee would be required to seek fresh approval from the Board in the event of seeking employment with another intermediary registered with the Board or associating in any other manner with another intermediary registered with the Board, within the period of one year”.

- iii. in the existing *proviso*, which shall now be the second proviso, the symbols and word “, however,” shall be substituted with the words and symbol “ further that,”.
 - iv. the provision appearing after the proviso shall be numbered as sub-regulation (4) and clause (a) appearing therein shall be added to the provision without any clause number.
 - v. clause (b) shall be omitted.
- c. the existing sub-regulation (4) shall be re-numbered as sub-regulation (5).

(E) in the Schedule, -

- a. in the reference to the enabling clause to the Schedule; the words “and clause (d)” shall be inserted after the words “Clause (b)”.
- b. in the third column, –
 - i. for the qualification for Grade D, E and F, the existing requirements shall be substituted with the following clauses, namely, -

“Master’s Degree in any discipline, Bachelor’s Degree in Law, Bachelor’s Degree in Engineering from a recognized university, CA, CFA, CS, CWA for officers in the General Stream.

Bachelor’s Degree in Law from a recognized University/Institute for officers in the Legal Stream.

Master’s Degree in Statistics / Economics / Commerce / Business Administration (Finance) / Econometrics for officers in the Research Stream.”

Bachelor’s Degree in Engineering (electrical/ electronics/ electronics and communication/ information technology/ computer science)/ Masters in Computers Application/ Bachelor’s Degree in any discipline with a post graduate qualification (minimum 2 years duration) in computers/ information technology for officers in Technical Stream.”

- ii. maximum age for recruitment of officers in Grade ‘A’, the figure “27” shall be substituted with the figure “30”;
- c. in the sixth column, the words “The Recommendation of Selection Committee shall be placed before the Board before an appointment letter/deputation offer is made to the candidate.” shall be omitted.

Sd/-

AJAY TYAGI

CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

1. The Securities and Exchange Board of India (Employees’ Service) Regulations, 2001, were published in the Gazette of India on 6th September, 2001 vide S.O. No. 857(E).

2. They were subsequently amended –

- (a) On 23rd December, 2003 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2003 vide F. No. SEBI/LE/15/2003.
- (b) On 25th May, 2004 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2004 vide S.O. No.623 (E).
- (c) On 11th April, 2007 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2007 vide F. No.11/LC/GN/2006/2143.
- (d) On 14th January, 2010 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2010 vide notification No. LADNRO/GN/2009-10/28/190983.
- (e) On 12th October, 2010 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2010-11/17/22954.
- (f) On 10th October, 2011 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2011 vide notification No. LAD-NRO/GN/2011-12/26/31671.
- (g) On 2nd May 2012 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2012 vide notification No. LADNRO/GN/2012-13/03/5290.
- (h) On 19th November 2012 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/223/5429.
- (i) On 8th October, 2013 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2013 vide notification No. LADNRO/GN/2013-14/27/6721.
- (j) On 26th February, 2015 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2015 vide notification No. LADNRO/GN/2014-15/22/366.
- (k) On 21st April, 2015 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2015 vide notification No. SEBINRO/OIAE/GN/2015-16/002.

- (l) On 30th November, 2016 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/016.
- (m) On 15th December, 2016 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/024.
- (n) On 27th April, 2017 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/001.
- (o) On 17th May, 2017 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/002.
- (p) On 13th July, 2017 by Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2017 vide notification No. SEBI/LAD-NRO/GN/2017-18/010.
- (q) On 27th April, 2018 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/09.
- (r) On 31st May, 2018 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/18.
